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|   |                                                                                        | <p><b>Summary of Tentative Ruling:</b> Motion to Strike: DENIED as to the 2nd, 3rd, 5th causes of action and GRANTED as to the 10th – 12th causes of action.</p> <p>Demurer: MOOT as to the 10th, 11th, and 12th causes of action, SUSTAINED with 10 days leave to amend as to the 5th cause of action, OVERRULED as to the remaining cause of action</p> <p>Defendant to give notice</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 3 | <p><b>Cardenas vs. New Life Treatment Center, Inc.</b></p> <p><b>2025-01505645</b></p> | <p><b>Motion for Leave to File Cross Complaint</b></p> <p><i>Procedural issues</i></p> <p>Defendants have not filed a proof of service showing the moving papers were served on Plaintiff. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As Plaintiff filed an opposition, Plaintiff does not appear to have been prejudiced by Defendants’ failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service.</p> <p>Moreover, Defendants’ motion is single-spaced in violation of California Rules of Court, rule 2.108(1) which requires the lines on each page to be one and one-half spaced or double-spaced.</p> <p>The Court reminds counsel of Local Rule 700.5 for the Superior Court of Orange County, which states, “Attorneys and self represented parties must comply with all applicable statutes in addition to Local Rules and the California Rules of Court.”</p> <p><i>Likely use of generative artificial intelligence</i></p> <p>The Court notes Defendants’ motion includes quotations that are not found in the cases cited. For example, Silver Organizations, Ltd. v Frank (1990) 217 Cal.App.3d 94, 99 does not contain the quoted language cited by Defendants at page 5, line 9 and page 6, line 28, and page 8, line 18 of the motion. Additionally, Align Technology, Inc. v. Tran (2009) 179 Cal.App.4th 949, 958-959 does not contain the quoted language cited by Defendants at page 7, line 7.</p> <p>“[N]o brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or</p> |

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|  | <p>any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (Nolan v. Land of the Free, L.P. (2025) 114 Cal.App.5th 426, 431 [emphasis in original].)</p> <p>“[A]lthough there is nothing inherently wrong with an attorney appropriately using AI in a law practice—before filing any court document, an attorney must ‘carefully check every case citation, fact, and argument to make sure that they are correct and proper. Attorneys cannot delegate that role to AI, computers, robots, or any other form of technology. Just as a competent attorney would very carefully check the veracity and accuracy of all case citations in any pleading, motion, response, reply, or other paper prepared by a law clerk, intern, or other attorney before it is filed, the same holds true when attorneys utilize AI or any other form of technology.’” (Id. at p. 913 [citation omitted].)</p> <p>The Court ADMONISHES Defendants to carefully read and verify citations used in any future filings with the Court and that the failure to do so will result in the imposition of monetary sanctions and other appropriate corrective action with the State Bar.</p> <p><i>Legal standard</i></p> <p>If a defendant’s cause of action against plaintiff is related to the subject matter of the complaint, it is compulsory and must be raised by cross-complaint or the defendant will be barred from asserting it in any later lawsuit. (Code Civ. Proc., § 426.30)</p> <p>If the proposed cross-complaint is compulsory, leave must be granted so long as defendant is acting in good faith (Code Civ. Proc., § 426.50.)</p> <p>“A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall</p> |
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|  | <p>be liberally construed to avoid forfeiture of causes of action.” (Code Civ. Proc., § 426.50.)</p> <p>“The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99.) As such, courts “reject the view that the trial court may “exercise discretion” in the denial of a motion to file a compulsory cross-complaint under section 426.50.” (Id. at p. 98.)</p> <p><i>Analysis</i></p> <p>Defendants seek leave to file a cross-complaint against Plaintiff to assert the following causes of action:</p> <ul style="list-style-type: none"> <li>(1) Fraud and Intentional Misrepresentation;</li> <li>(2) Negligent Misrepresentation;</li> <li>(3) Breach of Implied Covenant of Good Faith and Fair Dealing;</li> <li>(4) Abuse of Process; and</li> <li>(5) Declaratory Relief.</li> </ul> <p>Defendants’ cross-complaint relates to the causes of action in Plaintiff’s complaint and is therefore compulsory. (Code Civ. Proc., § 426.30.) Plaintiff alleges, for example, that after obtaining approval by her doctor to return to work after her maternity leave, Defendants “ignored Plaintiff and refused to accommodate Plaintiff.” (Compl. ¶¶ 93-84.) The proposed cross-complaint alleges after Plaintiff returned to work after maternity leave, she “unilaterally and without authorization attempted to fundamentally change the terms and conditions of her employment,” including that she would no longer work full-time as she had done prior to her leave and would work remotely rather than in-person. (Prop. Cross-Compl., ¶¶ 16-18.) As such, Defendants’ motion must be granted so long as defendant is acting in good faith (Code Civ. Proc., § 426.50.)</p> |
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|   |                                                                         | <p>Counsel for Defendants submits a declaration stating that after Defendants filed their answer on 9/30/25, counsel conducted further investigation into the facts and circumstances of Plaintiff's employment with Defendants, including reviewing employment records, wage statements, communications between the parties, and witness statements. (Carey Decl., ¶ 5.) Based on this investigation and legal research, counsel determined Defendants have valid cross-claims against Plaintiff arising from the same employment relationship and the same factual circumstances alleged in Plaintiff's Complaint. (Carey Decl., ¶ 6.) Defendants then filed the instant motion on 1/27/26.</p> <p>Defendants further contend the proposed cross-complaint arises from the same operative facts as Plaintiff's complaint and that the case is still in its early stages with ongoing discovery and no trial date. (Carey Decl., ¶¶ 12, 14.)</p> <p>The Court does not find Defendants have acted in bad faith. To the extent Plaintiff contends the causes of action in Defendants' proposed cross-complaint are subject to California's Anti-SLAPP statute and/or demurrer, "a party that unsuccessfully opposes a motion for leave to file an amended complaint or cross-complaint has the right to demur to the new pleading after it is filed." (Talbot v. Ghadimi (2025) 109 Cal.App.5th 967, 976, fn. 7 [citations omitted].)</p> <p><b>Tentative Ruling:</b> The Court GRANTS Defendants New Life Treatment Center, Inc. and Mary Malek's motion for leave to file a cross-complaint against Plaintiff Sheyda Morales Cadenas.</p> <p>Defendants are ORDERED to file the cross-complaint within ten (10) days</p> |
| 4 | <p><b>Gunbilir vs. Ed's Detail Inc.</b></p> <p><b>2024-01387919</b></p> | <p><b>Motion for Leave to File Amended Complaint</b></p> <p>Isganuhi Suna ("Suna"), Successor Trustee of the Kirkor Gunbilir Revocable Living Trust Dated March 4, 2019, seeks leave to amend the Complaint to be substituted as Plaintiff in place of Nerses Gunbilir, former Trustee of the Gunbilir Trust, and to attach the appropriate Lease Agreement as Exhibit "A".</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |